

Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 9/18/2026 10:00 AM

#	Case Name	Tentative
1	Silvett vs. General Motors, LLC 30-2024- 01435633-CU- BC-CJC	Motion for Attorney Fees Continued to 10/16/2026 to be heard concurrently with OSC re Sanctions.
2	Rha vs. American Honda Motor Co. Inc. 30-2025- 01490625-CU- PL-CJC	Motion for Attorney Fees, Costs, and Expenses The Motion for Attorney Fees and Costs by Plaintiffs Joseph Rha and Hanna Rha is GRANTED in part. The Court previously continued this matter to allow the parties to submit supplemental briefs on the application of <i>Gorobets v. Jaguar Land Rover North America, LLC</i> (2026) 20 Cal.5th 501 (<i>Gorobets</i>).

		Defendant maintains the first 998 offer, which was identical to the second 998 offer Plaintiffs accepted, cut off Plaintiffs' entitlement to subsequent fees and costs under <i>Gorobets</i>. Defendant asserts prior to the first 998 offer, Plaintiffs only incurred \$280.00 in fees and costs. Plaintiffs do not address the amount incurred prior to the first 998 offer. In their supplemental brief filed on 8/28/2026, Plaintiffs apparently concede the initial 998 offer was valid. However, they argue the second 998 offer "extinguished" the initial offer and <i>Gorobets</i> does not change this "last-offer rule." Plaintiffs also contend the 998 offer expressly deems them the prevailing parties. Notably, Plaintiffs did not raise either argument in their initial briefing pre-<i>Gorobets</i>. Defendant asserts the "last offer rule" is irrelevant to this case because the last 998 offer superseded the first 998 offer but did not render it ineffective in cutting off Plaintiffs' entitlement to fees and costs under section 998. The initial 998 offer had already been deemed revoked by operation of law when the second offer was served more than 30 days later. Therefore, the last offer rule is inapplicable because the Court is not presented with a situation where there are two section 998 offers pending at once. Plaintiffs are entitled to the fees and costs prior to the first 998 offer. Therefore, the motion is granted in the amount of \$280.00. Plaintiffs are ORDERED to submit a proposed judgment within 5 days. Clerk to give notice.
3	DI Overnite Investments, LLC vs. Nabal 30-2024- 01393386-CU- BT-CJC	Motion to Post Bond and Further Stay First Amended Cross-Complaint Cross-Defendant DI Overnite Investments LLC's (DIO) unopposed Motion to Post Bond and Stay the Cross-Complaint Until Bond is Furnished is GRANTED. "A shareholder's derivative suit seeks to recover for the benefit of the corporation and its whole body of shareholders when injury is caused to the corporation that may not otherwise be redressed because of failure of the corporation to act." (<i>Jones v. H. F. Ahmanson & Co.</i> (1969) 1 Cal.3d 93, 106.)